CLAMP-SWING PRICING CO.

RECEIVED
CLERK, U.S. BANKRUPTCY COURT
APR - 6 2006
MIDDLE DISTRICT OF FLORIDA
JACKSONVILLE DIVISION

April 3, 2006

Fed EX

Clerk of the Court
United States Courthouse
300 North Hogan St. #3-350
Jacksonville, FL 32202

RE: Winn-Dixie Bankruptcy, Creditor 246300-12, Case 05-03817-3F1, Claim 7664

Dear Sir/Madam,

We hereby oppose a claim reduction in the amount of $2,412.67 per debtor's Overstated Claim Objection filed March 21, 2006.

On July 23, 2005 we filed to amend our claim by the above amount to recover an Accounts Payable Credit that was taken against our Invoice 119366 of January 11, 2005. This credit was a result of an error in a shipment made on December 3 2004 for PO 550038. Winn-Dixie was charged this amount for freight in error by the carrier, Old Dominion. They paid the charge in full and deducted the amount as stated above as the terms of the PO are "Delivered Freight". However, when Old Dominion corrected the matter, Winn-Dixie received a complete refund of $2,412.67, thus the full amount of our Invoice 119366 of $12,427.40 is payable. Clamp-Swing was charged and paid $1135.55 for the shipment in question.

This was all the result of a shipping clerk's mistake in completing the Original Bill of Lading, marking it "Freight Collect at class 250" instead of "Freight Prepaid at Class 85". If this claim is not reinstated, we will end up paying the total of $3,548.22 for freight and Winn-Dixie will receive a deduction of $2,412.67 that they are not entitled to.

All of the documents submitted with our July 2005 filing are included here for your convenience.

Sincerely,

Ben Garfinkle
President

CC: Skadden, Arps, et al, via fax
Enclosures

8386 CAPWELL DRIVE • OAKLAND • CA 94621
C:\Documents and Settings\bgarfinkle\My Documents\WordDocs\WD Ch11 Amend 1.doc
V: (510) 567-1600 F: (510) 567-1830 web: www.clampswing.com

UNITED STATES BANKRUPTCY COURT
MIDDLE DISTRICT OF FLORIDA
JACKSONVILLE DIVISION

REC'D MAR 2 4 2006

In re:	)	Case No. 05-03817-3F1
WINN-DIXIE STORES, INC., et al.,	)	*Chapter 11*
Debtors. [1]	)	Jointly Administered

NOTICE OF DEBTORS' SEVENTH OMNIBUS OBJECTION TO OVERSTATED CLAIMS

Claimant ID: WDX-246300-7A-12
CLAMP SWING PRICING COMPANY
ATTN BEN GARFINKLE, PRESIDENT
8386 CAPWELL DR
OAKLAND, CA 94621

CLAIM(S) TO BE REDUCED	
CLAIM NO.: **7664** CLAIM AMOUNT: **$49,709.60** REDUCED AMOUNT: **$47,296.93**	REASON FOR REDUCTION: **REDUCED AMOUNT REFLECTS ACCOUNTS PAYABLE CREDIT OF $2,412.67.**

1. PLEASE TAKE NOTICE that Winn-Dixie Stores, Inc. and twenty-three of its subsidiaries and affiliates (collectively, the "Debtors") filed on March 21, 2006 their Seventh Omnibus Objection to Overstated Claims (the "Objection") with the United States Bankruptcy Court for the Middle District of Florida (the "Bankruptcy Court").

2. **The Objection requests that the Bankruptcy Court reduce one or more of your claims listed above under CLAIM(S) TO BE REDUCED for the reason set forth above.**

3. If you do NOT oppose the reduction of your claim(s) listed above under CLAIM(S) TO BE REDUCED, then you do NOT need to file a written response to the Objection and you do NOT need to appear at the hearing.

4. If you DO oppose the reduction of your claim(s) listed above under CLAIM(S) TO BE REDUCED, then you MUST file and serve a written response to the Objection that is received on or before **4:00 p.m. Eastern Time on**

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[1] In addition to Winn-Dixie Stores, Inc., the following entities are debtors in these related cases: Astor Products, Inc., Crackin' Good, Inc., Deep South Distributors, Inc., Deep South Products, Inc., Dixie Darling Bakers, Inc., Dixie-Home Stores, Inc., Dixie Packers, Inc., Dixie Spirits, Inc., Dixie Stores, Inc., Economy Wholesale Distributors, Inc., Foodway Stores, Inc., Kwik Chek Supermarkets, Inc., Sunbelt Products, Inc., Sundown Sales, Inc., Superior Food Company, Table Supply Food Stores Co., Inc., WD Brand Prestige Steaks, Inc., Winn-Dixie Handyman, Inc., Winn-Dixie Logistics, Inc., Winn-Dixie Montgomery, Inc., Winn-Dixie Procurement, Inc., Winn-Dixie Raleigh, Inc., and Winn-Dixie Supermarkets, Inc.

CLAMP-SWING PRICING CO.

July 23, 2005

Logan Company
546 Valley Rd.
Upper Montclair NJ, 07043

RE: Winn-Dixie Bankruptcy, Creditor 246300-12, Case 05-03817-3F1

Dear Sirs,

We wish to amend our claim in this matter. We are on record with a claim in the amount of $47,296.93 as stated on the enclosed "Proof of Claim" form. The amendment in the amount of $2412.67 brings our total claim to $49,709.60. The debtor took a discount of $2412.67 on our account due to a shipping and billing error. It is a little complicated but I will attempt to explain it. Supporting documents are attached.

We received their PO 550038 to ship to Jacksonville, FL, freight prepaid. It was a typical purchase order; identical to many we had received from them. Our vendor made an error when filling out the Bill of Lading for Winn-Dixie's preferred carrier, Old Dominion. Instead of marking it as "Prepaid" and Class 85, they marked it as "Collect" at Class 250. This resulted in Winn-Dixie being billed for freight in the amount of $2412.67. When we discovered this error, we attempted to have the Bill corrected and charged to Clamp-Swing at the correct class. We were successful at doing this but the timing couldn't have been worse. The short story is that Winn-Dixie deducted the $2412.67 from our account, they received a full refund from Old Dominion (made in two installments) and we received a corrected invoice from Old Dominion for $1133.55. Then they declared bankruptcy, leaving us with the revised freight bill to pay and shorted the $2412.67 on our bankruptcy claim.

Attached are copies of:

- Proof of Claim
- The original, incorrectly prepared Bill of Lading
- A memo from Clamp-Swing to our vendor to correct the Bill of Lading
- Statements from Winn Dixie explaining the deduction
- Email correspondence with our contact at Old Dominion to correct the matter
- Copies of the refunds made by Old Dominion to Winn-Dixie
- Copy of revised bill to Clamp-Swing from Old Dominion

8386 CAPWELL DRIVE • OAKLAND • CA 94621
V: (510) 567-1600 F: (510) 567-1830 web: www.clampswing.com

If you have any questions about this or need additional documentation, please let me know.

Thank you.

Sincerely,

Ben Garfinkle
President

Enclosures

Name of Debtor Against Which You Assert Your Claim:

Debtor Name: WINN-DIXIE PROCUREMENT Case No. 05-03817-3F1

(See List of Names and Case Numbers on Reverse Side)

Your claim is scheduled as follows:

Debtor
Winn-Dixie Procurement, Inc.
Classification
Unsecured Non-Priority Claim
Scheduled Amount
$47,296.93

NOTE: This form should not be used to make a claim for an administrative expense arising after the commencement of the case. A "request" for payment of an administrative expense may be filed pursuant to 11 U.S.C. §503.

A. Name and Address of Creditor (The person or other entity to whom the debtor owes money or property):

19949786
Creditor Id: WDX-246300-B1-12
CLAMP SWING PRICING COMPANY
8386 CAPWELL DR
OAKLAND, CA 94621

MAY 05

510-567-1600
Telephone No. of Creditor

510-567-1830
Fax No. of Creditor

(If your address has changed or is incorrect as it appears in Item A, please provide corrections)

B. Name and address of signatory or other person to whom notices must be served, if different from above. (Check box if): ☐ replaces address above ☐ additional address

Name:

Company/Firm:

Address:

☐ Check box if you are aware that anyone else has filed a proof of claim relating to your claim. Attach a copy of statement giving particulars.

☐ Check box if you have never received any notices in this case.

If an amount is identified above, you have a claim scheduled by the Debtor as shown. If you agree with the amount and classification of your claim as scheduled by the identified Debtor and you have no other claims against any of the debtors, you do not need to file this proof of claim. EXCEPT AS FOLLOWS: If the amount shown is listed above as DISPUTED, UNLIQUIDATED, OR CONTINGENT, a proof of claim MUST be filed in order for you to receive any distribution on account of your claim. If you have already filed a proof of claim in accordance with the attached instructions, you need not refile your claim.

Account or Other Number by Which Creditor Identifies Debtor:

Check here if this claim ☐ replaces ☐ amends a previously filed claim, dated:

1. Basis for Claim

☒ Goods sold to debtor(s)
☐ Services performed for debtor(s)
☐ Goods purchased from debtor(s)
☐ Money loaned
☐ Personal injury/property damage
☐ Other

☐ Taxes
☐ Severance agreement
☐ Refund
☐ Real property lease
☐ Personal property lease
☐ Other contract

☐ Retiree benefits as defined in 11 U.S.C. § 1114(a)
☐ Wages, salaries, and compensation (fill out below)
Last four digits of SSN:
Unpaid compensation for services performed from (date) to (date)

2. Date debt was incurred: 12/22/04, 1/11/05, 1/31/05, 2/13/05

3. If claim is based on a Court Judgment, date obtained:

4. Total Amount of Claim at Time Case Filed:

$ 49,709.60 (unsecured) $ (secured) $ (priority) $ 49,709.60 (Total)

If all or part of your claim is secured or entitled to priority, also complete Item 5 or 7 below.

☐ Check this box if claim includes interest or other charges in addition to the principal amount of the claim. Attach itemized statement of all interest or additional charges.

5. Secured Claim.

☐ Check this box if your claim is secured by collateral (including a right of setoff).

Brief description of Collateral:
☐ Real Estate ☐ Motor Vehicle ☐ Other

Value of Collateral: $

Amount of arrearage and other charges at time case filed included in secured claim, if any: $

6. Unsecured Nonpriority Claim $ 49,709.60

☒ Check this box if: a) there is no collateral or lien securing your claim, or b) your claim exceeds the value of the property securing it, or if c) none or only part of your claim is entitled to priority.

7. Unsecured Priority Claim.

☐ Check this box if you have an unsecured priority claim

Amount entitled to priority $

Specify the priority of the claim:

☐ Wages, salaries, or commissions (up to $4,925),* earned within 90 days before filing of the bankruptcy petition or cessation of the debtor's business, whichever is earlier – 11 U.S.C. § 507 (a) (3).
☐ Contributions to an employee benefit plan – 11 U.S.C. § 507 (a) (4).
☐ Up to $2,225* of deposits toward purchase, lease, or rental of property or services for personal, family, or household use – 11 U.S.C. § 507 (a) (6).
☐ Alimony, maintenance, or support owed to a spouse, former spouse, or child – 11 U.S.C. § 507 (a) (7).
☐ Taxes or penalties owed to governmental units – 11 U.S.C. § 507 (a) (8).
☐ Other – Specify applicable paragraph of 11 U.S.C. § 507 (a) ( ).

Amounts are subject to adjustment on 4/1/07 and every 3 years thereafter with respect to cases commenced on or after the date of adjustment.

8. Credits: The amount of all payments on this claim has been credited and deducted for the purpose of making this proof of claim.

9. Supporting Documents: *Attach copies of supporting documents*, such as promissory notes, purchase orders, invoices, itemized statements of running accounts, contracts, court judgments, mortgages, security agreements, and evidence of perfection of lien. DO NOT SEND ORIGINAL DOCUMENTS. If the documents are not available, explain. If the documents are voluminous, attach a summary.

10. Date-Stamped Copy: To receive an acknowledgment of the filing of your claim, enclose a stamped, self-addressed envelope and copy of this proof of claim.

This Space Is For Court Use Only

Date: 7/25/05

Sign and print the name and title, if any, of the creditor or other person authorized to file this claim (attach copy of power of attorney, if any) and to receive notice:

Print: BEN GARFINKLE Title: PRESIDENT

Signature:

Penalty for presenting fraudulent claim: Fine of up to $500,000 or imprisonment for up to 5 years, or both. 18 U.S.C. §§ 152 and 3571.

SHIPPER PLEASE NOTE: FREIGHT CHARGES ARE PREPAID ON THIS BILL OF LAD[illegible]

STRAIGHT BILL OF LADING

ORIGINAL - NOT NEGOTIABLE

delivering new solutions

OLD DOMINION FREIGHT LINE

02902161435 SFC

DEST JAX SHIP # 2904896 CUBE % 20

DATE | PCS | CKR# | BAY/UNIT | OSD PCS

FREIGHT CHARGES: ☐ PREPAID ☒ COLLECT

DATE 12/3/2004 | P.C. NO. 550038

SHIPPER (FROM): Kennerley-Spratling, Inc.	CONSIGNEE (TO): 8290GMW Winn-Dixie GM Whse.
ADDRESS: 2116 Farallon Dr.	ADDRESS: 5050 Edgewood Court
CITY, STATE, ZIP: San Leandro, CA. 94577	CITY, STATE, ZIP: Jacksonville, FL. 32254
SHIPPER PHONE NO.:	CONSIGNEE PHONE NO.:

ALOW LESS 43 GS 4

BILL THIRD PAR[illegible] FREIGHT CHARGES TO:

NAME/COMPANY: XXXXXXXXXXXXXXXXXXXXXXXX

ADDRESS: XXXXXXXXXXXXXXXXXX

CITY, STATE, ZIP: XXXXXXXXXXXXXXXXXXXX

ATTN:

COMMENTS:

COD AMOUNT

COD FEE: ☐ Prepaid ☐ Collect

IS CUSTOMER'S CHECK ACCEPTABLE FOR COD? ☐ Yes ☐ No

REMIT COD TO:

ADDRESS:

CITY: STATE: ZIP:

ROUTE

NUMBER SHIPPING UNITS	HM*	Kind of Packaging, Description of Articles, Special Marks and Exceptions	NMFC No.	CLASS	WEIGHT (LBS) Subject to Corrections
4		Pallets (48 Cartons) Plastic Articles			2304# Net
		Over 15 Dens. P/S#37658-KSI	156600-3	250	168# Tare
					2472# Gross

HAZARDOUS MATERIALS EMERGENCY CONTACT NUMBER: 2

Carrier Liability: Shipments valued at more than $25.00 per pound are of extraordinary value. Carrier's maximum liability is $25.00 per pound per package subject to $125,000.00 maximum total liability per shipment. The agreed value on household goods, used machinery, or personal effects does not exceed ten cents per pound per article, unless otherwise specified.

THIS IS TO CERTIFY THAT THE ABOVE NAMED MATERIALS ARE PROPERLY CLASSIFIED, DESCRIBED, PACKAGED, MARKED AND LABELED AND ARE IN PROPER CONDITION FOR TRANSPORTATION ACCORDING TO THE APPLICABLE REGULATIONS OF THE DEPARTMENT OF TRANSPORTATION AND THE NATIONAL MOTOR FREIGHT CLASSIFICATION AS SHOWN IN THE NMFC [illegible]

NOTE—Where the rate is dependent on value, shippers are required to state specifically in writing the agreed or declared value of the property. The agreed or declared value of the property is hereby specifically stated by the shipper to be not exceeding

$ _____ per _____

TALLY RECORD

TOTAL

Subject to section 7 of the conditions, if this shipment is to be delivered to the consignee without recourse on the consignor, the consignor shall sign the following statement: The carrier shall not make delivery of this shipment without payment of freight and all other lawful charges.

_____ (Signature of Consignor)

Shipper hereby certifies that he understands that all transportation by ODFL shall be subject to the terms and conditions of the Bill of Lading contract shown in the NMFC 100 series, and the said terms and conditions are hereby agreed to by the shipper and accepted for himself and his assigns.

SHIPPER AUTHORIZED SIGNATURE: Russell Gill

CARRIER: OLD DOMINION FREIGHT LINE, INC.

DATE: 12/3/04 | M/U RECEIVED: 4 SWPS | TRAILER NO. [illegible]

AUTHORIZED SIGNATURE: Don Woolen

*Mark "X" in "HM" Column For Hazardous Materials

ODFL

CONTRACT TERMS CONTINUED ON REVERSE SIDE

CLAMP SWING PRICING CO.
8386 CAPWELL DRIVE
OAKLAND, CA 94621
(800) 227-7515
V: (510) 567-1600
F: (510) 567-1830
email@clampswing.com

ATTN: Adam / Peggy Stultz
COMPANY: Kinnarney-Spalding
FAX NUMBER: 352-9240
FROM: Diana Dudley

Kevin/Peggy

On 12/3/04, you made a shipment for us to Winn-Dixie, Old Dominion
Pro# 02902161435.
Your Invoice 37658-ksi
Our po 24187, csp order# 69789
The bill of lading apparently was made out correctly to start with, and then changed. (See attached)
What we need you to do is contact Old Dominion and issue a corrected bill of lading showing Prepaid, bill 3rd party - Clamp Swing.
We need this done as soon as possible, Winn-Dixie has been charged for this shipment, and they shouldn't have been.
Please fax a copy of corrected bill of lading when you have it as I need to follow up with the customer.

Thank you,

Diana Dee

Total number of pages including cover sheet: 3

If this fax transmission is not complete, please call (510) 567-1600

WINN-DIXIE

America's Supermarket®

WINN-DIXIE HEADQUARTERS
P.O. BOX 350001
ORLANDO, FL 32885-0230

(904)370-6059

DEBIT MEMORANDUM

TO: A/R CUST: 321324
CLAMP SWING PRICING COMPANY
8386 CAPWELL DRIVE

OAKLAND , CA 94621-0000

INV # ACC 186834
DATE: 01/26/2005
PREPARED BY: NJJ
INV AMOUNT: $2412.67

PLEASE REFER TO INV # WHEN REMITTING AND FOR CORRESPONDENCE

DR 114120	9001113	2412.67	CR 114300	9001974	2412.67

THIS IS TO CHARGE BACK THE VENDOR FOR FREIGHT PAID BY WINN-DIXIE ON A PREPAID DELIVERY PURCHASE ORDER (550038) THAT WAS SENT FREIGHT COLLECT IN ERROR. REFER TO OLD DOMINION #02902161435.

2/21

TERMS: NET UPON RECEIPT. SUBJECT TO INTEREST AT RATE OF 18.00% ANNUALLY. AFTER 30 DAYS.

Check Date: 11.Feb.2005 *Check No.* *007451329*

Division	Invoice Number	Invoice Date	Voucher ID	Gross Amount	Discount Available	Paid Amount
WDHDQ	ACC186834	11.Feb.2005	A0910315	-2,412.67	0.00	-2,412.67
	AR CR VOUCHER					
WDGVD	119310	22.Dec.2004	00122004	12,427.40	0.00	12,427.40
WDGVD	119366	11.Jan.2005	00122254	12,427.40	0.00	12,427.40

ENT'D FEB 23 2005

Vendor Number	Name	Total Discounts
0000321324	CLAMP SWING PRICING COMPANY	$0.00

Check Number	Date		Total Amount	Discounts Taken	Total Paid Amount
007451329	11.Feb.2005		$22,442.13	$0.00	$22,442.13

The face of this document has a red background on white paper, micro-printing and a security watermark on reverse side.

Winn-Dixie Stores, Inc.
PO Box B
Jacksonville, Florida 32203-0297

WACHOVIA BANK, N.A.
Pensacola, FL 32534

007451329
63-1012/632

Date 11.Feb.2005

Pay ****TWENTY-TWO THOUSAND FOUR HUNDRED FORTY-TWO AND 13 / 100 US DOLLAR**** Pay Amount $22,442.13****

To The Order Of

CLAMP SWING PRICING COMPANY
8386 CAPWELL DR
OAKLAND, CA 94621

Winn Dixie Stores, Inc. Consolidated Disbursement Account

KD Hardee

Authorized Signature

VOID IF NOT PRESENTED WITHIN 90 DAYS

⑈007451329⑈ ⑆063101256⑆ 20798L00000336⑈

3:05-bk-03817-JAF Doc 16929 Filed 04/06/06 Page 10 of 18

WINN-DIXIE

Statement Number: 186

Statement Date: 02/06/2005

Account Number: 17000321324

If you have questions about your account, please contact us at the following-
Winn-Dixie Accounts Receivable
Email: ARCollections@winn-dixie.com
Phone: Pearl Izarra 904-370-7006

Send payment to: WINN-DIXIE STORES, INC.
Accounts Receivable
PO Box 850001
Orlando, FL 32885-0230
Please include full account number on the check remittance

NONE
CLAMP SWING PRICING COMPANY
8386 CAPWELL DRIVE
OAKLAND, CA 94621

Inv Date	Item ID	Entry Type	Amount Due	Item Activity	PO	Document	Payment
Account Name: CLAMP SWING PRICING COMPANY 17000321324							
01/26/2005	DM-HDQACC186834	1 Debit Memo	2,412.67	2,412.67	FREIGHT		
Total for CLAMP SWING PRICING COMPANY			2,412.67				

Statement Total 2,412.67

	Future	2 - 30	31 - 60	61 - 90	Over 90	Total
No. of Items		1				1
Amount		2,412.67				2,412.67

Please reference specific item(s) on the check remittance.

In order to ensure more accurate and timely posting of credits to your statement, we ask that you please remit a copy of the original billing statement along with your payment. The original billing statement is yours to keep for your records.

In addition, we also ask that you please remit all payments to the mailing address listed at the top of your billing statement. We appreciate your business.

For reclaim back-up, please visit our internet site at www.winn-dixie.com.

For additional information, please contact:
Winn-Dixie Accounts Receivable
Email: ARCollections@winn-dixie.com
Phone: Pearl Izarra 904-370-7006

From: Beth Perez [Beth.Perez@odfl.com]
Sent: Tuesday, March 01, 2005 9:17 AM
To: bgarfinkle@clampswing.com
Subject: RE: WD

Ben,

Apparently, Winn Dixie still has credit w/Old Dominion, so they did receive the full refund from us for the original amount of the freight bill. I am trying to get a name and contact number for you for Winn Dixie from my corporate office. someone who might be better able to help you to get your money back. This is now billing to you for $1133.55. Am I right in thinking that you want that amount back at least from Winn Dixie?

Beth
-----Original Message-----
From: Ben Garfinkle [mailto:bgarfinkle@clampswing.com]
Sent: Monday, February 28, 2005 10:54 PM
To: Beth Perez
Cc: Diana Guidry (E-mail); Brent Morrison (E-mail)
Subject: WD

Hi Beth,

Any word on how the changes we talked about turned out?

Thanks

Ben

delivering new solutions

2340 INDUSTRIAL PARKWAY WEST
HAYWARD, CA 94545

PHONE: 800-421-3546
510-785-9155
FAX: 510-785-5801

DATE: 7/15/05

PAGES: 5 **(INCLUDES COVER SHEET)**

MESSAGE TO:

NAME: Ben

COMPANY: Clamp Swing

MESSAGE FROM:

NAME: Beth

COMMENTS: Refund Info as requested.

Date: 7/15/05 DOMINION FREIGHT LINE, INC Pgm: RVAR0168
Time: 12:33:37 Accounts Receivable Transaction History User: PEREZB
Bill-to: 76652 CLAMP-SWING PRICING Rfnd: N Add'l Rec'ls N
Pro#: 290216143 5 Col/Ppd: P Suspense: Pro not currently suspended
Statement Rcvbls for Bill-To CCP Made N

Tran.Dt. / Tran.Tm.	App. Type / Type Description	Cus/Pay/Bch Sub	Check/Statement Sub Description	Trans.Amount / Customer/Payor/Authority Name	Balance Due
2/15/05	REF OPAY	33878	050127-00026519	1,828.04	.00
20:00:04	OVERPAYMENT	CC	CREDIT CARD	Warehouse Freight	
2/14/05	RATE AR	33878		584.63	1,828.04-
13:37:20	ACCTS REC'L			WINN DIXIE	
2/14/05	RATE AR	33878		2,412.67-	2,412.67-
13:37:19	ACCTS REC'L			WINN DIXIE	
1/27/05	CP CC	33878	050127-00026519	2,412.67-	.00
20:00:35	CREDIT CARD	AR	ACCTS RECL	Warehouse Freight	

(2A) (1)

More...

F3=Exit F4=More/Less F5=FB F6=SusHst F8=Dtl
F10=Aging F11=G/L F12=Cancel F21=Print

1. Initial payment by Winn Dixie
2a. Partial refund to WD
2.b. Remaining balance refund to WD.

510-567-1830

Date: 7/15/05 DOMINION FREIGHT LINE, IN Pgm: RVAR0168
Time: 12:35:41 Accounts Receivable Transaction Details User: PEREZB
Bill-to: 76652 CLAMP-SWING PRICING Rfnd: N Add'l Rec'ls N
Pro#: 2902161435 Col/Ppd: P Suspense: Pro not currently suspended
Statement Rcvbls for Bill-To CCP Made N

2A

Payor....: Warehouse Freight
Address..: 5050 Edgewood Court
Jacksonville FL 32254

Date/Time:	2/15/05 20:00:04	Amount.....:	1,828.04
Appl code:	REF REFUND	Check number:	050127-00026519
Type.....:	OPAY OVERPAYMENT	Batch number:	050127G000
Subtype..:	CC CREDIT CARD	Ref Number..:	AR 047873250

A/R comment: 050215-00027517
Updated by.: HAGYDEB Pgm: RVAM0636R
Adj reason.:

Cr Card Type: VI VISA CC Payment Ent by: HAGYDEB
CC Approval Code: REFUND CC Trans ID: 6136D8FB-D8AF-4E5E-A015-FAA64418427A
F12=Cancel

Date: 7/15/05 DOMINION FREIGHT LINE, INC. Pgm: RVAR0168
Time: 12:29:53 Accounts Receivable Transaction History User: PEREZB
Bill-to: 76652 CLAMP-SWING PRICING Rfnd: N Add'l Rec'ls N
Pro#: 2902161435 Col/Ppd: P Suspense: Pro not currently suspended
Statement Rcvbls for Bill-To CCP Made N

Tran.Dt. Tran.Tm.	App. Type Description	Cus/Pay/Bch Sub	Check/Statement Sub Description	Trans.Amount Customer/Payor/Authority Name	Balance Due
4/11/05 15:46:08	CP LBHP LOCKBOX RECEIPT	76652 AR	72671 ACCTS RECL	1,133.55- CLAMP-SWING PRICING CO	.00
2/26/05 20:00:01	REF OPAY OVERPAYMENT	33878 CC	050127-00026519 CREDIT CARD	584.63 Warehouse Freight	1,133.55
2/18/05 13:55:31	RATE AR ACCTS REC'L	76652		1,133.55 CLAMP-SWING PRICING	548.92
2/18/05 13:55:30	RATE AR ACCTS REC'L	33878		584.63- WINN DIXIE	584.63-

(26)

More...

F3=Exit F4=More/Less F5=FB F6=SusHst F8=Dtl
F10=Aging F11=G/L F12=Cancel F21=Print

Date: 7/15/05 DOMINION FREIGHT LINE, INC. Pgm: RVAR0169
Time: 12:30:03 Accounts Receivable Transaction Details User: PEREZB
Bill-to: 76652 CLAMP-SWING PRICING Rfnd: N Add'l Rec'ls N
Pro#: 290216143 5 Col/Ppd: P Suspense: Pro not currently suspended
Statement Rcvbls for Bill-To CCP Made N

26

Payor....: Warehouse Freight
Address..: 5050 Edgewood Court

Jacksonville FL 32254

Date/Time:	2/26/05 20:00:01	Amount.....:	584.63
Appl code:	REF REFUND	Check number:	050127-00026519
Type.....:	OPAY OVERPAYMENT	Batch number:	0501276000
Subtype..:	CC CREDIT CARD	Ref Number..:	AR 048306073

A/R comment: 050226-00028228
Updated by.: HAGYDEB Pgm: RVAM0636R
Adj reason.:

Cr Card Type: VI VISA CC Payment Ent by: HAGYDEB
CC Approval Code: REFUND CC Trans ID: 84B9885F-16B3-4716-A3AA-04340F977AAA
F12=Cancel

ORIGIN	DEST	SHIPPER B/L NUMBER	PURCHASE ORDER NUMBER	TARIFF	TRAILER #	DOC	PRO DATE
SFC	JAX	NS	550038	559	781312		12/03/04

Pro # 02902161435
Invoice Date 02/18/05
Due Date 03/05/05

ORIG I/L	ORIG I/L REV	ORIG I/L PRO#	DEST I/L	DEST I/L REV	ORIG AGENT	DEST AGENT	MASTER PRO #	ODFL REV	BILL-TO #
									76652

Page 1 of 2

SHIPPER
KENNERLEY SPRATLING INC
2116 FARALLON DR
SAN LEANDRO, CA 94577

SHIPPER # 2904896

CONSIGNEE
WINN DIXIE
GM WHSE
5050 EDGEWOOD CT.
JACKSONVILLE, FL 32205

CONSIGNEE # 5409280

PIECES	HM	DESCRIPTION	CLASS	WEIGHT	RATE	PREPAID
4		HANDLING UNITS: 4 UNITS OF TYPE WSKD				
		SW SKID DIMS: 44"X42"X51" EA				
		48 CTN				
		PLASTIC ARTICLES NMFC #156600 S7 92.5	085	2472	13289	3285.04
		OVER 15 DENS				
		P/S # 37658-KSI				

		Rate Clerk: DRG				
		DRP 12/09/04 CORRECT AS BILLED				
		C8L DGB 2/14/05 CORRECTED BILL OF LAD				
		CHANGE TO ADD COMMODITY DESCRIPTION				
		PER LETTER FROM THE SHIPPER				
		// PRISCILLA ///				
		FUEL INCREASE				133.04
		CORRECTED BILL OF LADING CHARGE				15.00
		C8L DGB 2/18/05 CORRECTED BILL OF LADING				
		CHANGE CHARGES TO PREPAID 3RD PARTY PER				
		Total				

TERMS AND CONDITIONS

FAILURE TO MAKE TIMELY PAYMENT OF CHARGES

A. Carrier must receive full payment of freight charges within 42 days from the original invoice due date to avoid being charged an assessment of liquidated damages in an amount equal to 135% of the amount due on this invoice.

B. The filing of a cargo or other claim against carrier will not relieve payor from responsibility for payment of freight charges.

Provisions of this rule do not change in any way the carrier's obligation to collect nor the freight charge payor's obligation to pay applicable charges within the contractual or legislated terms allowed in compliance with D.O.T. 49 CFR Part 377 and the credit period stated in ITEM 434. This rule establishes a condition precedent for the application of the special pricing provisions described in Paragraph A above.

Continued on next page...

BILL TO

CLAMP-SWING PRICING
8386 CAPWELL DR
OAKLAND CA 94621

FEB 23 RECD

PAY THIS AMOUNT → (Payable in US funds)

INVOICE NUMBER
02902161435

Please reference pro number on remittance

INQUIRIES

Transportation Services .. 336-822-5147
Past Due or Invoicing ..... 336-822-5166 Claims 336-822-5168

ORIGINAL INVOICE

Remit To: OLD DOMINION FREIGHT LINE, INC. (ODFL)
P O BOX 60908 CHARLOTTE, NC 28260-0908

ORIGIN	DEST	SHIPPER B/L NUMBER	PURCHASE ORDER NUMBER	TARIFF	TRAILER #	DOC	PRO DATE
SFC	JAX	NS	550038	559	781312		12/03/04

Pro # 02902161435
Invoice Date 02/18/05
Due Date 03/05/05

ORIG I/L	ORIG I/L REV	ORIG I/L PRO#	DEST I/L	DEST I/L REV	ORIG AGENT	DEST AGENT	MASTER PRO #	ODFL REV	BILL-TO #
									76652

Page 2 of 2

SHIPPER
KENNERLEY SPRATLING INC
2116 FARALLON DR
SAN LEANDRO, CA 94577

SHIPPER # 2904896

CONSIGNEE
WINN DIXIE
GM WHSE
5050 EDGEWOOD CT.
JACKSONVILLE, FL 32205

CONSIGNEE # 5409280

PIECES	HM	DESCRIPTION	CLASS	WEIGHT	RATE	PREPAID
		LETTER FROM THE 3RD PARTY // BEN				
		GARFINKLE ///				
		C/ADDITIONAL REDUCTION, ALLOWANCE OR				
		ADDITIONAL REDUCTION, ALLOWANCE OR				
		ADJUSTMENT MAY APPLY.				
		ADJUSTMENT MAY APPLY.				
		LOAD#: NS				
		Consignee phone#: NS				
		Discount Allowed: 70.00%				2299.53-
4		Total		2472		1133.55

TERMS AND CONDITIONS

FAILURE TO MAKE TIMELY PAYMENT OF CHARGES

A. Carrier must receive full payment of freight charges within 42 days from the original invoice due date to avoid being charged an assessment of liquidated damages in an amount equal to 135% of the amount due on this invoice.

B. The filing of a cargo or other claim against carrier will not relieve payor from responsibility for payment of freight charges.

Provisions of this rule do not change in any way the carrier's obligation to collect nor the freight charge payor's obligation to pay applicable charges within the contractual or legislated terms allowed in compliance with D.O.T. 49 CFR Part 377 and the credit period stated in ITEM 434. This rule establishes a condition precedent for the application of the special pricing provisions described in Paragraph A above.

BILL TO

CLAMP-SWING PRICING
8386 CAPWELL DR
OAKLAND CA 94621

FEB 23 RECD

PAY THIS AMOUNT → 1133.55
(Payable in US funds)

INVOICE NUMBER
02902161435

Please reference pro number on remittance

INQUIRIES

Transportation Services ... 336-822-5147
Past Due or Invoicing ..... 336-822-5166 Claims 336-822-5168

ORIGINAL INVOICE

Ben garfinkle

From: Ben garfinkle [bgarfinkle@clampswing.com]
Sent: Thursday, July 14, 2005 6:43 PM
To: 'Beth Perez'
Subject: RE: WD

Hi Beth,

Can you help me with an old subject? We need to amend our claim against Winn Dixie. In the email below you state OD refunded the full amount to them. Can you fax or email me a document, which will prove that statement?

Thanks

Ben

-----Original Message-----
From: Beth Perez [mailto:Beth.Perez@odfl.com]
Sent: Tuesday, March 01, 2005 9:17 AM
To: bgarfinkle@clampswing.com
Subject: RE: WD

Ben,

Apparently, Winn Dixie still has credit w/Old Dominion, so they did receive the full refund from us for the original amount of the freight bill. I am trying to get a name and contact number for you for Winn Dixie from my corporate office, someone who might be better able to help you to get your money back. This is now billing to you for $1133.55. Am I right in thinking that you want that amount back at least from Winn Dixie?

Beth
-----Original Message-----
From: Ben Garfinkle [mailto:bgarfinkle@clampswing.com]
Sent: Monday, February 28, 2005 10:54 PM
To: Beth Perez
Cc: Diana Guidry (E-mail); Brent Morrison (E-mail)
Subject: WD

Hi Beth,

Any word on how the changes we talked about turned out?

Thanks

Ben